

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RAHEIM WILLIAMSON,

Plaintiff,

-Against-

THE CITY OF NEW YORK and
JOHN DOE 1, JOHN DOE 2, AND JOHN DOE 3,

Defendants,
-----X

Index No.:
Date Purchased

SUMMONS

Plaintiff designates Bronx
County as plate of trial

The basis of venue is:
Plaintiff's residence: 325
East 143rd street, Bronx,
NY 10451

To the above names Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated : New York, New York
November 3, 2022

Jason Lesnevec
JASON LESNEVEC, ESQ
LAW OFFICE OF MICHAEL S LAMONSOFF, PLLC
Attorneys for Plaintiff
RAHEIM WILLIAMSON
32 Old Slip
New York, NY 10038
212 962 1020

TO:

THE CITY OF NEW YORK
c/o THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RAHEIM WILLIAMSON,

Plaintiff,

-Against-

THE CITY OF NEW YORK and
JOHN DOE 1, JOHN DOE 2, AND JOHN DOE 3

Defendants,
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COMPLAINT

JURY TRIAL
DEMANDED

Plaintiff, RAHEIM WILLIAMSON, by and through his attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America and the Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx in that Plaintiff's county of residence is and has been Bronx County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, RAHEIM WILLIAMSON, is, and has been, at all relevant times, a resident of the County of Bronx, City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendants were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.
10. At all times hereinafter mentioned, the individually named defendants, JOHN DOES 1-3, were duly sworn members of said department and were acting under the supervision of said department and according to their official duties. Defendants JOHN DOES 1-3 are

sued herein in their official and individual capacities.

11. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

14. On May 26, 2019 at approximately 6:30 a.m., Plaintiff RAHEIM WILLIAMSON, was lawfully located at or near the premisses at 310 East 102 Street, Apt 5B, in the County of New York, City and State of New York.
15. At this time, the individually named officers and other unknown police officers employed by the City of New York arrived at the location on duty.
16. Without any legal justification or excuse, the Defendant police officers, JOHN DOES 1-3 unlawfully seized and questioned the Plaintiff.
17. The search revealed no evidence of any guns, drugs, or contraband.
18. Plaintiff was not engaged in any unlawful or suspicious activity.
19. During said unlawful stop of Plaintiff, without any legal justification or excuse, the

- Defendant police officers JOHN DOES 1-3 and other unknown officers did repeatedly, without cause, assault Plaintiff with tasers and guns.
20. Plaintiff was then formally arrested, was placed in handcuffs, and was transported to a hospital where he was searched and detained for several hours.
21. At no time on May 26, 2019, did Plaintiff commit any crime or violation of law.
22. At no time on May 26, 2019, did the Defendant police officers possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
23. At no time on May 26, 2019, did the Defendant police officers possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
24. Plaintiff was held for several hours in the hospital where he was not free to leave.
25. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
26. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
27. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
28. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all

under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST AND FALSE IMPRISONMENT
UNDER STATE LAW AND FEDERAL LAW, PURSUANT TO 42 U.S.C. § 1983**

30. Plaintiff RAHEIM WILLIAMSON repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
31. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
32. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF FOR
EXCESSIVE FORCE, UNDER 42 U.S.C. § 1983**

33. Plaintiff, RAHEIM WILLIAMSON repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
34. As a result of the Defendants' conduct, Plaintiff was subject to intentional excessive force, as described herein.
35. As a result of Defendants' conduct, Plaintiff, RAHEIM WILLIAMSON was subjected to

excessive force by the Defendants intentionally causing nerve damage to both hands by over tightening handcuffs and leaving them on longer than needed, as described herein.

36. As a result of the Defendants' conduct, the Plaintiff was subject to a level of force by the Defendants in excess of what was reasonable under the circumstances.
37. As a result of the foregoing, the Plaintiff's liberty was restricted, and he was put in fear for his physical safety without probable cause or any legal justification, and he was physically injured.

**THIRD CLAIM FOR RELIEF FOR
EXCESSIVE FORCE, ASSAULT, AND BATTERY**

38. Plaintiff, RAHEIM WILLIAMSON, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
39. On May 26, 2019 and at all times relevant to the action herein, defendants, THE CITY OF NEW YORK AND JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3, along with other unknown individuals that were on duty and were working in the scope and course of their employment as New York City Police Officers for defendant THE CITY OF NEW YORK and without plaintiffs consent willfully wantonly, maliciously and intentionally committed assault and battery upon plaintiff RAHEIM WILLIAMSON.

**FOURTH CLAIM FOR RELIEF
FOR NEGLIGENT HIRING, TRAINING, AND RETENTION**

40. Plaintiff, RAHEIM WILLIAMSON, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at

length.

41. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendants in failing to properly hire and train its police officers; in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and/or detectives; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently carelessly and recklessly assaulting, attacking and abusing this plaintiff, in violating the applicable rules, statutes and ordinances which govern the activities of the defendants, its agents and/or employees and in otherwise being negligent.

FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

42. Plaintiff, RAHEIM WILLIAMSON, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
43. Defendants arrested, searched, and seized plaintiff, RAHEIM WILLIAMSON, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and seizure would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
44. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority

attendant thereto.

45. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
46. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
47. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
48. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate

indifference to the safety, well-being and constitutional rights of Plaintiff, RAHEIM WILLIAMSON.

49. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
50. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
51. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
53. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
54. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
November 3, 2022

____Jason Lesnevec_____
JASON LESNEVEC, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
RAHEIM WILLIAMSON
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020

VERIFICATION

JASON LESNEVEC, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiffs in the action within. I have read the annexed

SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Dated: New York, New York
February 3, 2022

Yours truly,

JASON LESNEVEC, ESQ.
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LAMONSOFF, PLLC
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